

26SMCV02147 26SMCV02147

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Tentative Ruling

David Ghatan v. Mercedes-Benz

USA, LLC, Case No. 26SMCV02147

Defendant's Motion to Compel

Arbitration

Hearing Date: August 31, 2026

Background

This is a lemon law case. On April 16, 2026, Plaintiff David Ghatan brought three claims against Defendant Mercedes-Benz USA and Sonic Automotive Protection Products, Inc., d/b/a W.I. Simonson Mercedes-Benz for violations of the Song-Beverly Act related to alleged defects in Plaintiff's leased car, a 2023 Mercedes-Benz EQE 35. (Complaint, ¶ 9.)

On June 22, 2026, Mercedes-Benz filed this Motion to Compel Arbitration. As of August 27, 2026, Plaintiff has not filed opposition.

Arbitration Standard

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate a controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists" (Code Civ. Proc., § 1281.2) "The party

seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

Analysis

Defendant moves for an order compelling Plaintiff to submit his claims to arbitration and staying this action pending completion of arbitration. (Motion to Compel Arbitration, p. 1) This motion is unopposed, so the only question before the Court is whether Defendant has met their burden of demonstrating the existence of a valid arbitration agreement that covers the dispute at issue.

Here, Defendant has moved to enforce an arbitration agreement in Plaintiff's lease. Defendant alleges that the lease is a valid contract with Plaintiff because he signed it. (Motion to Compel Arbitration, p. 5) Page six of the lease agreement bears Plaintiff's signature, and pages four and five bear his initials, right below sections entitled "Important Arbitration Disclosures" and "Important Arbitration Disclosures (Continued)," which immediately preceded the third-party beneficiary provision at issue. (Newman Declaration, Exhibit B.) Absent opposition evidence, Plaintiffs' signature is sufficient to show that he agreed to the arbitration provision.

The provision reads:

"Any claim or dispute, whether in contract, tort or otherwise . . . , between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a Third Party Beneficiary), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either of you, us, or a Third Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action." (Id. at p. 4)

The Court finds that Plaintiff's lease contains a valid arbitration agreement that covers this dispute, which arises out of the condition of the car leased under the lease agreement, binds Plaintiff and Defendant, as a third-party beneficiary, to arbitration in this action.

Conclusion

Defendant's Motion to Compel Arbitration is GRANTED.

This matter is STAYED pending arbitration.